

HOUSE BILL 2632

By Marsh

AN ACT to amend Chapter 62 of the Private Acts of 2016; as amended by Chapter 40 of the Private Acts of 2020; and any other acts amendatory thereto, relative to the Shelbyville Power, Water and Sewerage System.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 62 of the Private Acts of 2016, as amended by Chapter 40 of the Private Acts of 2020, and any other acts amendatory thereto, is amended by deleting subsections (a) and (c) in Section 17-3 and substituting instead:

(a) The board shall be composed of seven (7) members, including five (5) citizen members, and two (2) members of the city council. The citizen members shall be appointed by the city council in the month of May to staggered, three-year terms of office commencing June 1. One (1) citizen member appointment shall be made in 2016, two (2) citizen member appointments shall be made in 2017, and two (2) citizen member appointments shall be made in 2018. This appointment regime shall continue thereafter in perpetuity on a three-year cycle. The members serving from the city council shall be appointed by the city council, with the first such appointment to be effective June 1, 2016, or as soon thereafter as possible. The term of the members of the city council on the board shall be for such time as the city council may fix by ordinance, but in no event to extend beyond such person's term in office. Each member of the board is to serve until his or her successor is appointed and qualified.

(c) Compensation and Benefits. The compensation of citizen members shall be fixed from time to time by ordinance of the city council. The city council members serving on the board shall receive no additional compensation while serving as a board member.

SECTION 2. Nothing in this act shall be construed as having the effect of removing any incumbent from office or abridging the term of any official prior to the end of the term for which such official was elected.

SECTION 3. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the City of Shelbyville. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 4. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 3.